A large number of other areas in the business and economic sector have been affected by law reform. Mining is one area of change and of competing interests. Although efforts were made to privatize mines in the 1990s and open up to foreign firms, these measures were stunted as Western economic sanctions were imposed. The Mining Law passed in 2015 offers new opportunities for foreign investment and extends the duration of large-scale mining licences, but most certainly will generate issues due to conflicting interests of the government, businesses, and local communities. There are also new laws for specific industries that have broken the monopoly that military companies had on particular sectors, such as the telecommunications sector, with Ooredoo and Telenor now competing with the existing MPT.[22]

Another emerging area of tension is the creation of the Myanmar Stock Exchange. The Stock Exchange was officially launched in December 2015. The Securities Exchange Law lays the foundation for the establishment of the Stock Exchange, and creates the Securities Exchange Supervision Commission (Tun Zaw Mra 2014).[23] The Stock Exchange, however, is majority-owned by Myanma Economic Bank, which remains on the United States sanctions list. While most Western sanctions have been lifted, there are many questions over how remaining sanctions will impact the functioning of new developments such as the Stock Exchange.

Overall, these economic and business reforms build on and extend the legislative foundations set after 1988, yet can now be implemented in an environment where most sanctions have been lifted. While these laws attempt to develop the economy by managing local and foreign interests, they will inevitably remain a source of tension and conflict, particularly in relation to land.

SOCIAL REFORMS: CONFLICT BETWEEN THE STATE AND CIVIL SOCIETY

The third area addressed is social reforms that have had an impact on the role of civil society, and the position of individuals in relation to the state, including labour law, media, religion, education, and the right to peaceful assembly. It is in this area that law reform to some extent represents a break with the past, although much depends on the implementation of these laws in the years to come. While still playing a role in managing